APPROVED ON OCTOBER 21, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

County Administration Workshop: October 13, 2026
1:30 p.m. – Board of Commissioners Conference Room
Attending: Commissioners Ron A. Smith; Colene M. Martin; Gary L. Richardson; and Nikole Guzman, Recorder

Chair Ron Smith called the meeting to order at 1:30 p.m.

1. **Declaration of Potential Conflicts of Interest**

   Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest.

2. **Department Business**

   a. **Planning**

      1. **Findings of Fact and Decision – Appeal of a Director's Decision to Deny a Non-Farm Dwelling on Lower River Road (Appellant/Applicant: Dirling Revocable Living Trust) – Appeal denied by the Board on September 21, 2026**

Tami Smith, Senior Planner, presented the Findings of Fact and Decision for the appeal of the Director's Decision to deny a non-farm dwelling on Lower River Road (Appellant/Applicant: Dirling Revocable Living Trust). She summarized that the Board held the appeal hearing on August 10, 2026, continued it twice, and on September 21, 2026 denied the request for the non-farm dwelling, upholding the Planning Director's decision, and requested approval and signature of the Findings of Fact documenting the denial.

In response to a Board question about the effect of the divided vote on September 21, Ms. Smith explained that the outcome was a denial of the appeal, leaving the Director's decision in effect, and that the Board's action was to approve the Findings documenting that denial.

Commissioner Smith moved to approve the Findings of Fact and Decision denying the appeal of the Director's Decision for a non-farm dwelling on Lower River Road and authorize signatures. Commissioner Richardson seconded the motion. Commissioner Martin stated that, having recused herself from the hearing, she would abstain. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Abstain; Commissioner Smith - Yes. Motion carried 2-0.

   b. **Transit**

      1. **Contract for Personal Services – Amendment No. 1 with BC Electronics, LLC for maintenance and installation of IT equipment on transit vehicles – Extend the term to December 31, 2027 and increase the hourly rate from $100 to $125 – Not to exceed $25,000 – Approval and signature**

Scott Chancey, Transit Program Supervisor, presented Amendment No. 1 to the Contract for Personal Services with BC Electronics, LLC. He explained that the original contract had been approved by the full Board and that Legal Counsel advised the amendment should be approved by the Board as well. The contractor maintains, installs and updates the IT equipment on all transit vehicles, including camera, video and audio systems, tablets running Transit software, GPS units and Cradlepoint modems that transmit data and carry a free Wi-Fi channel for passengers. The original contract expired in December 2025; the lapse was identified by Finance, and Transit needs a contract in place for the coming year. Work is performed on an as-needed basis, with approximately $7,000 budgeted for the service this year and the amendment capped at $25,000. The service is paid from state funds allocated to transit operations within the Transit budget, not County General Fund.

In response to Board questions, Mr. Chancey stated that the contractor is a local individual with an engineering background who has installed camera systems and IT equipment for Transit for approximately five years, responds within 24 hours when equipment fails, and performs fleet-wide updates in the evening or on Saturdays when the vehicles are in the yard. He explained that he had asked the County IT Department three or four times whether it wished to perform the work before engaging the contractor and had not received a commitment; the equipment resides on vendor networks rather than County systems, anything that interacts with the County network is cleared with IT, and he would continue to offer the work to IT as a way to leverage

Transit funds. He described the work as somewhat specialized but within the ability of anyone with a computer or engineering background.

Commissioner Richardson moved to approve Amendment No. 1 to the Contract for Personal Services with BC Electronics, LLC and authorize the Board to sign. Commissioner Martin seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

2. **Spare Labs Inc. Invoice No. SL-202609-1075 – Annual subscription for the Spare One passenger app (trip planning, real-time bus arrival, ride booking and pass purchases) for July 30, 2026 through July 29, 2027 – $31,500 – Approval of payment**

Mr. Chancey presented Spare Labs Inc. Invoice No. SL-202609-1075 in the amount of $31,500 for the annual subscription to the Spare One passenger app, a platform provided by the same company that supplies Transit's demand-response dispatching software. Passengers use the app on a smart device to plan trips, view projected and real-time bus arrivals by stop, book rides and purchase passes. The ride-booking function supported the Transit On Demand evening service, which operated from 6:00 to 9:30 p.m. until Mr. Chancey discontinued it in July for financial reasons; the capability remains available if the service resumes and is included in the annual cost. The pass feature issues a dynamic bus pass or trip ticket displayed on the rider's phone with motion that makes it difficult to counterfeit, similar to electronic concert tickets. The subscription was originally $30,000 annually, and the $31,500 invoice reflects a 5 percent increase, consistent with other Transit services. The cost is included in the Transit budget from funds earmarked for public transit service, with no County General Fund involved.

In response to a Board question about whether the IT Department had reviewed the renewal, Mr. Chancey stated that IT was involved in the first year, that nothing resides on County equipment because riders use the vendor's online platform and the information is transmitted to Transit, and that he would ask IT to identify any concerns. He also reported that the Treasurer's Office now has access to the platform because pass purchases are deposited to County accounts.

Commissioner Martin moved to approve payment of Spare Labs Inc. Invoice No. SL-202609-1075 in the amount of $31,500. Commissioner Richardson seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

3. **Board Business**

a. **Board Order No. 2026-059 – In the Matter of Continuing the Suspension of Acceptance of Applications for Mineral Exploration Permits and Mining Leases – Continues the suspension established by Board Order No. 2026-040 for an additional one (1) year, effective October 8, 2026 through October 8, 2027**

Chair Smith stated that he had placed Board Order No. 2026-059 on the agenda to continue the suspension of the acceptance of applications for mineral exploration permits and mining leases established by Board Order No. 2026-040. Dave Streeter, Forestry, advised that the prior suspension had expired on October 8, 2026, so an application could technically be submitted at any time, and recommended that the Board suspend acceptance of applications and then address the ordinance however it saw fit rather than be placed in the position of processing an application under the existing ordinance.

Commissioners discussed the length of the suspension and the future of the Mining Ordinance (Josephine County Code Chapter 5.15). Chair Smith favored a longer suspension of up to one year because the County is in the midst of litigation predicated on the ordinance. Commissioner Martin preferred to begin the process of repealing the ordinance, stating that applications could be handled case by case through a standard contract without the liability exposure the ordinance has created and that the pending litigation would be decided on the facts in place at the time. Commissioners noted that County Legal Counsel had indicated the subject is outside his practice area and that the Board would consider engaging counsel with relevant expertise later in the week, and that the previous suspension had run to October 8 and lapsed before the Board completed its work on the ordinance, which favored a shorter term to keep the matter on task. It was noted that this would be the third 90-day suspension, and the Board was asked to make the matter a priority so that it is resolved within the period.

Commissioner Martin agreed to make repeal of the ordinance her priority, to contact the attorney retained through CIS to defend the litigation that afternoon regarding the proposed approach, and to request that Legal Counsel prepare a repeal ordinance, noting that an ordinance is required to repeal an ordinance. The Board agreed to continue the suspension for 90 days rather than the one year stated in the draft Order, with the Order to be revised accordingly.

Commissioner Martin moved to approve Board Order No. 2026-059, amended to continue the suspension of the acceptance of applications for mineral exploration permits and mining leases for 90 additional days rather than one year. Commissioner Smith seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

b. **Letter to Senators Wyden, Merkley, Crapo and Risch and Congressman Bentz in Support of Continued Secure Rural Schools (SRS) Funding – Approval and signatures**

Commissioner Martin presented a letter to Senators Wyden, Merkley, Crapo and Risch and Congressman Bentz encouraging passage of the Secure Rural Schools reauthorization legislation introduced in Congress on September 30, 2026. She explained that the County relies on SRS payments and should be proactive rather than reactive, noting that the last lapse in the program took approximately two years to restore. The County will receive one more payment in spring 2027, which is already budgeted, and needs certainty to budget for the coming years; the legislation under consideration would extend the program to 2030. Commissioner Richardson suggested that the letter place greater emphasis on a permanent, long-term solution rather than another two- or three-year extension, citing the importance of stable funding for the County's emergency services, schools and the Forest Service. Commissioner Martin agreed to revise the letter to include that request.

Commissioners also discussed the relationship between SRS payments and O&C timber receipts, including the possibility that the pending revision of the O&C resource management plan could increase harvest and again present the County with a choice between the two sources. They noted that O&C receipts are deposited to the General Fund at the County's discretion, while SRS funds are restricted to specified categories, including search and rescue, fire planning and emergency services; that Payment in Lieu of Taxes is permanent but applies to Forest Service lands and is not the same as O&C funding; and that the O&C Act of 1937 directs that those lands be managed for permanent forest production. Commissioners expressed support for both funding sources and noted that Congressman Bentz would be in the area the following week. The Board approved the letter, as revised, without objection.

c. **Resolution No. 2026-038 – In the Matter of an Appointment to the Property Value Appeals Board (PVAB) – Appointment of Daniel Wilson to a two-year term**

The Board considered Resolution No. 2026-038, appointing Daniel Wilson to a two-year term on the Property Value Appeals Board (PVAB), as requested by County Clerk Rhiannon Henkels. Commissioners indicated no objection to the appointment.

Commissioner Martin moved to approve Resolution No. 2026-038 appointing Daniel Wilson to the Property Value Appeals Board. Commissioner Richardson seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

4. **OTHER**

Commissioner Martin reported that the Board plans to adopt a proclamation in November for Operation Green Light for Veterans, to be read at a Weekly Business Session, and that the Veterans Service Office is enthusiastic about the effort and may be asked to read the proclamation. Facilities has lit the Courthouse green for the observance previously and would light the balcony area, and Public Information Coordinator Thomas Gray will issue a press release. Commissioners expressed support.

Commissioner Martin also noted that advisory board and committee minutes had recently appeared on the Weekly Business Session Consent Calendar and stated that she found it helpful because she otherwise would not know when each committee met or where to locate its minutes. She asked whether the Board wished to continue the practice for all advisory bodies. Staff explained that advisory minutes are posted on the Committees and Advisories page of the County website once approved by the Board at the Weekly Business

Session. Commissioners agreed to continue listing advisory board and committee minutes on the Consent Calendar, noting that the practice adds transparency and that the public frequently looks to Board agendas, which makes the minutes easier to find.

5. **ADDITIONAL SUBJECT MATTERS FROM COMMISSIONERS/ANNOUNCEMENTS:**

None heard.

Chair Smith adjourned the meeting at 2:01 p.m.